

The Gazette **of Pakistan**

**EXTRAORDINARY
PUBLISHED BY AUTHORITY**

ISLAMABAD, TUESDAY, NOVEMBER 10, 2015

PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

**MINISTRY OF INFORMATION, BROADCASTING AND
NATIONAL HERITAGE**

NOTIFICATION

Islamabad, the 6th November, 2015

S. R. O. 1095 (I)/2015.—In exercise of the powers conferred by section 10 of the Pakistan National Council of the Arts Act, 1973(LIX of 1973), the Federal Government is pleased to make the following rules, namely:—

1. **Short title and commencement.**—(1) These rules may be called the PNCA (Finance & Audit) Rules, 2015.

(2) They shall come into force at once.

2. **Definitions.**—In these rules, unless there is anything repugnant in the subject or context.—

- (i) “Act” means the Pakistan National Council of the Arts Act, 1973(LIX of 1973);
- (ii) “Board” means the Board of Governors of the Council;
- (iii) “Chairman” means Chairman of the Board;

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- (iv) "Member" means the Member of the Board;
- (v) "Council" means Pakistan National Council of the Arts;
- (vi) "Fund" means the Fund established under Section 8 of the Act;
- (vii) "Budget" means the financial estimates of the Council for the Financial Year duly recommended by the Executive Committee and approved by the Board; and
- (viii) "Director General" means the Director General of the Council.

3. **Funds of the Council.**—(1) The funds of the Council shall be derived from the sources specified in section 8 of the Act.

2. The funds and accounts of the Council shall be maintained on financial year basis under the order of the Board.

4. **Bank Accounts.**—Subject to the Government Policy, all the funds shall be placed in the name of the Council in the banks approved by the Board, in the following heads:—

- (a) Current Account;
- (b) Savings Account;
- (c) Term Deposit Account;
- (d) Welfare Fund Account;
- (e) Contributory Provident Fund Account;
- (f) Endowment Fund Account; and
- (g) Any other financial head to be determined by the Board from time to time.

5. **Meetings of the Board of Governors.**—Meeting of the Board shall be held at least once in every financial year to consider administrative, financial and policy matters of the Council and shall be convened by the Chairman or a person authorized by him in this behalf.

6. **Assets of the Council.**—All assets of the Council shall be in the name of the Council. The Chairman and Director General, on the recommendation of Executive Committee and approval of the Board, shall be authorized to jointly exercise all the powers which are deemed necessary for this purpose.

7. **Deposits of recovered amounts.**—(1) The Council shall receive funds in the form of crossed cheques/bank draft/pay order in its name.

(2) The amounts received in cash by any authorized representative of the Council shall be deposited in the respective head of the bank account immediately and shall not be used for any other purpose.

8. **Payment from the Council Fund.**—No payment shall be made from the Fund until it is approved by the Director General or other officer authorized by the Board in this behalf.

9. **Procurement from Fund.**—All purchases shall be made following the Public Procurement Regulatory Authority Rules, 2004 and the Federal Government's instructions issued in this behalf.

10. **Procedure of Payment.**—All payments shall be made through crossed cheques duly signed by the two officers authorized by the Board in this behalf. The Director General shall be the authorized officer for payment of petty cash upto fifty thousand rupees.

11. **Budget.**—(1) The Council shall, in the month of November each year, submit to the Federal Government, in such a manner and in such form as it may direct, a statement of the estimated receipts and expenditure of the Council in respect of the next financial year along with annual statement of accounts of the Council and report of the auditors for previous year.

(2) The Director General shall be responsible for getting the actual income and expenditure statements of the current financial year and budget estimates for the next financial year proposed for placement before the Board for approval at the end of current financial year.

12. **Expenditure from Budget Estimates.**—(1) All the expenditures from the fund shall be incurred following the Federal Government rules and instructions issued from time to time and according to the amounts allocated in the annual budget duly approved by the Board. In case of Government funding, prior approval of the Government will be mandatory.

(2) Subject to the approval of the Executive Committee and in accordance with Government instructions on the subject, the Director General may re-appropriate funds from different budgetary heads. Re-appropriations in case of funds provided by the Government, and restricted heads re-appropriations shall be undertaken with the approval of the Government, Finance Division as per prevailing System of Financial Control and Budgeting 2006, and other instructions including austerity measures, issued from time to time by Finance Division.

(3) The limits on various accounts, payment, expenditures shall be followed as contained in System of Financial Control and Budgeting, 2006.

13. **Investment.**—The Council may invest its surplus funds in accordance with the instructions of the Federal Government.

14. **Audit.**—(1) The Accounts of the Council shall be audited by the Auditor General of Pakistan in such a manner as may be prescribed from time to time by the Federal Government.

(2) The Director General shall also get the accounts of the Council audited by a Chartered Accountant appointed in terms of section 9 of the Act. At the close

of each financial year, the Director General shall place the annual statement of Accounts of the Council along with the report of the Auditor to the Board through the Executive Committee.

(3) Any dispute between the Director General and the Auditor regarding the implementation of rules or regulations framed under the Act shall be referred to the Board, whose decision thereon shall be final.

15. **Books of the Accounts of Council.**— The following books of accounts shall be maintained at the offices of the Council:—

- (i) Cash Book
- (ii) Subsidiary Cash Book
- (iii) General Ledger
- (iv) Bank Ledger
- (v) Grant in aid Register
- (vi) Contractors Ledger
- (vii) Advances Ledger
- (viii) TA/DA Register
- (ix) Electricity Bill Register
- (x) Gas Bill Register
- (xi) Telephone Payments Register
- (xii) Sanctioned Posts Register
- (xiii) Budget Control Register
- (xiv) Cash Book for Contributory Provident Fund
- (xv) Pay Roll Register
- (xvi) Contributory Provident Fund Ledger
- (xvii) Other Books of Accounts (if any)

16. **Preservation of Vouchers.**—Head wise vouchers of expenditure shall be maintained for at least ten years. Vouchers more than ten years old may be destroyed at the discretion of the Board but the accounts and documents of gifts and donations shall remain part of the permanent record.

17. **Supervision of Board.**—For maintenance and implementation of the accounts of the Council, the Board may give any direction to the Director General.

[No. F.7-13/2012-PNCA.]

NAZIR AHMAD,
Deputy Secretary.